Number 34 *of* 1996

TELECOMMUNICATIONS (MISCELLANEOUS PROVISIONS) ACT 1996

REVISED

Updated to 28 May 2019

This Revised Act is an administrative consolidation of the *Telecommunications (Miscellaneous Provisions) Act 1996*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Greyhound Racing Act 2019* (15/2019), enacted 28 May 2019, and all statutory instruments up to and including *European Communities (Sheep Identification) (Amendment) Regulations 2019* (S.I. No. 243 of 2019), made 28 May 2019, were considered in the preparation of this Revised Act.

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Number 34 *of* 1996

TELECOMMUNICATIONS (MISCELLANEOUS PROVISIONS) ACT 1996

REVISED

Updated to 28 May 2019

AN ACT TO MAKE PROVISION FOR THE ESTABLISHMENT OF THE OFFICE OF DIRECTOR OF TELECOMMUNICATIONS REGULATION, FOR THE TRANSFER OF FUNCTIONS FROM THE MINISTER TO THE DIRECTOR, FOR THE IMPOSITION OF A LEVY ON PROVIDERS OF TELECOMMUNICATIONS SERVICES, AND FOR THE REGULATION OF TARIFFS FOR CERTAIN TELECOMMUNICATIONS SERVICES, TO AMEND THE POSTAL AND TELECOMMUNICATIONS SERVICES ACT, 1983, AND TO PROVIDE FOR RELATED MATTERS. [10*th December*, 1996]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

Interpretation.

1.—(1) In this Act, except where the context otherwise requires—

F1**[** "Commission" means the Commission for Communications Regulation established by Part 2 of the Communications Regulation Act 2002;**]**

"the company" means Bord Telecom Éireann;

F2**[**...**]**

"functions" includes powers and duties;

"the Minister" means the Minister for Transport, Energy and Communications;

"records" includes information stored electronically;

"the Principal Act" means the Postal and Telecommunications Services Act, 1983.

(2) A reference in this Act to a section, subsection or a Schedule is a reference to a section of, or subsection of, or Schedule to this Act, unless it is indicated that reference to some other Act is intended.

(3) A reference in this Act to any enactment, unless the context otherwise requires, shall be construed as a reference to that enactment as amended, adapted or extended by or under any subsequent enactment including this Act.

(4) A reference to the performance of functions includes, with respect to powers and duties, a reference to the exercise of powers and the carrying out of duties.

Director of Telecommunications Regulation.

2.—F3**[**...**]**

Functions of Director.

3.—F4**[**...**]**

Section 2.F21**[**...**]**

FIRST SCHEDULE

Office of Director of Telecommunications Regulation

Section 4 (2).

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PART I

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Broadcasting Authority Act, 1960	1960, No. 10
Broadcasting Authority (Amendment) Act, 1976	1976, No. 37
Civil Service Commissioners Act, 1956	1956, No. 45
Civil Service Regulation Acts, 1956 and 1958	
Companies Act, 1963	1963, No. 33
Companies Acts, 1963 to 1990	
European Assembly Elections Act, 1977	1977, No. 30
European Parliament Elections Act, 1993	1993, No. 30
Finance Act, 1985	1985, No. 10
Irish Aviation Authority Act, 1993	1993, No. 29
Petty Sessions (Ireland) Act, 1851	14 & 15 Vict., c. 93
Postal and Telecommunications Services Act, 1983	1983, No. 24